

CONFORMED COPY

**HELION ROBOTICS, INC.**

**AMENDED AND RESTATED**

**STOCKHOLDERS' AGREEMENT**

Dated as of November 20, 2025

THE SHARES SUBJECT TO THIS AGREEMENT, AND ANY INTEREST IN AN INVESTMENT VEHICLE HOLDING SUCH SHARES, ARE SUBJECT TO THE RESTRICTIONS ON TRANSFER, CONSENT REQUIREMENTS AND RIGHT OF FIRST REFUSAL SET OUT IN SECTIONS 3 AND 4 OF THIS AGREEMENT. ANY TRANSFER IN BREACH OF THOSE PROVISIONS IS VOID.

*This extract reproduces Section 1.1, Sections 3 and 4, Section 6.1, Section 9.1 and Schedule 2. All other provisions are omitted.*

**SYNTHETIC DOCUMENT. Prepared for demonstration purposes only. All names, parties and terms are fictional. Not legal advice.**

THIS AMENDED AND RESTATED STOCKHOLDERS' AGREEMENT is entered into as of November 20, 2025 by and among Helion Robotics, Inc., a Delaware corporation (the **"Company"**), and the persons listed on Schedule 1 (each, a **"Stockholder"**).

## RECITALS

- A. The Company and certain of the Stockholders are parties to a Stockholders' Agreement dated as of April 8, 2023 (the **"Prior Agreement"**).
- B. In connection with the Company's Series B Preferred Stock financing, the parties wish to amend and restate the Prior Agreement in its entirety, including to regulate indirect transfers of interests in vehicles that hold Shares.

NOW, THEREFORE, in consideration of the mutual covenants set out in this Agreement, the parties agree as follows.

## SECTION 1 DEFINITIONS

**1.1 Definitions.** In this Agreement, the following terms have the meanings set out below.

**"Affiliate"** means, in relation to a person, any other person that directly or indirectly controls, is controlled by, or is under common control with that person.

**"Board"** means the board of directors of the Company.

**"Business Day"** means a day other than a Saturday, a Sunday or a day on which banks in New York City are authorized or required by law to close.

**"Competitor"** means any person listed in Schedule 2, and any Affiliate of such a person.

**"Indirect Transfer"** means any Transfer of any direct or indirect interest in an Investment Vehicle, including any limited partnership interest, membership interest or economic participation in it, and includes any change of control of a person whose principal asset is such an interest.

**"Investment Vehicle"** means any Stockholder that is a partnership, company or other entity whose principal asset is Shares.

**"Permitted Transferee"** means, in relation to the transferor of an interest in an Investment Vehicle: (a) an Affiliate of that transferor; (b) a trust established solely for the benefit of that transferor or members of that transferor's immediate family; or (c) on the death of an individual transferor, that transferor's estate. For the avoidance of doubt, a fund or account managed or advised by the same investment adviser as the transferor is not a Permitted Transferee unless it is an Affiliate of the transferor.

**"Shares"** means shares of any class of capital stock of the Company.

**"Transfer"** means any sale, assignment, transfer, pledge, charge or other encumbrance, whether direct or indirect.

**“Transfer Notice”** means a written notice to the Company stating (a) the identity of the proposed transferee, (b) the interest proposed to be Transferred, (c) the price and other material terms, and (d) the proposed completion date.

*[Section 2 omitted from this extract]*

### SECTION 3 RESTRICTIONS ON TRANSFER

**3.1 Company Consent.** No Stockholder shall Transfer any Shares, and no Investment Vehicle shall permit, register or give effect to any Indirect Transfer, without the prior written consent of the Company, approved by the Board.

**3.2 Permitted Transferees.** Section 3.1 does not apply to an Indirect Transfer to a Permitted Transferee, provided that the Investment Vehicle gives the Company written notice of the Indirect Transfer, identifying the transferee, at least ten clear Business Days before it takes effect, excluding both the day on which the notice is received and the day on which the Indirect Transfer takes effect.

**3.3 Competitors.** No Transfer or Indirect Transfer may be made to a Competitor, whether or not the Company has consented to it.

**3.4 No Deemed Consent.** The Company’s failure to respond to any request for consent shall not constitute consent.

### SECTION 4 RIGHT OF FIRST REFUSAL

**4.1 Right of First Refusal.** Before any Indirect Transfer by way of sale, other than to a Permitted Transferee, the Investment Vehicle shall deliver a complete Transfer Notice to the Company, and the Company shall have the right to purchase the interest proposed to be Transferred on the terms set out in it.

**4.2 Exercise Period.** The Company may exercise its right by written notice given no later than the end of the twentieth Business Day after the day on which it receives a complete Transfer Notice. The period does not begin to run until a complete Transfer Notice has been received.

**4.3 Whole, Not Part.** The Company may exercise its right only in respect of the whole, and not part, of the interest set out in the Transfer Notice.

**4.4 Waiver.** The Company may waive its right under this Section 4 by written notice at any time.

**4.5 Completion Window.** If the Company waives its right or does not exercise it within the exercise period, the Indirect Transfer may be completed to the transferee named in the Transfer Notice, on terms no more favorable to that transferee, within 45 Business Days after the end of the exercise period or, if earlier, the date of the waiver. After that, a new Transfer Notice is required.

**4.6 Rights Independent.** The consent requirement in Section 3.1 and the right of first refusal in this Section 4 are independent. A waiver of the right of first refusal is not a consent under Section 3.1, and a consent under Section 3.1 is not a waiver of the right of first refusal.

*[Section 5 omitted from this extract]*

## **SECTION 6**

### **EFFECT OF NON-COMPLIANCE**

**6.1 Transfers in Breach Void.** Any Transfer or Indirect Transfer made otherwise than in accordance with this Agreement shall be void. The Company shall not recognize any such Transfer or record it in its books, and each Investment Vehicle shall refuse to register, recognize or give effect to any such Indirect Transfer in its own records.

*[Sections 7 and 8 omitted from this extract]*

## **SECTION 9**

### **NOTICES**

**9.1 Notices.** Any notice or request to the Company must be delivered by email to legal@helion-robotics.example and is received on the day of transmission if sent before 5:00 p.m. New York time on a Business Day, and otherwise on the next Business Day. The sender bears the burden of proving delivery.

*[Remainder of Section 9 and Schedule 1 omitted from this extract]*

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

**HELION ROBOTICS, INC.**

By: /s/ Daniel Okafor

Name: Daniel Okafor

Title: Chief Executive Officer

*[Stockholder signature pages omitted from this extract]*

*[Signature Page to Amended and Restated Stockholders' Agreement]*

**SCHEDULE 2  
COMPETITORS**

1. Kestrel Automation Ltd
2. Vantor Dynamics, Inc.